

Court No. - 39

Case :- WRIT - C No. - 13441 of 2021

Petitioner :- Raghvendra Singh Rajput

Respondent :- Uttar Pradesh Power Corporation

Counsel for Petitioner :- Gulab Chandra

Counsel for Respondent :- Krishna Agarawal, Gaurav Singh

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Sadhna Rani (Thakur), J.

Heard learned counsel for the petitioner, Sri Krishna Agarawal learned counsel for the respondent No.1 and Sri Gaurav Singh learned counsel for the respondent No.2.

The petitioner herein is seeking for quashing of the notice dated 30.05.2020 whereby provisional assessment with regard to the unauthorized use of electricity in accordance with the provision of the Electricity Supply Code' 2005 has been made by the department, calling upon the petitioner to furnish his explanation within a period of 15 days.

Learned counsel for the petitioner states that the petitioner has not submitted his explanation on account of the Covid-19 and a written explanation was given on 08.06.2020 which had not been considered by the respondent No.2.

Learned counsel for the respondent-department, on the other hand, submits that the present writ petition has not been filed with correct facts. No such explanation or reply to the notice dated 30.05.2020 has been filed by the petitioner. Final assessment order has been passed on 07.11.2020, but on the question of recovery, learned counsel for the respondent-department has no instruction.

Considering the fact that the final assessment order has been passed on 07.11.2020 pursuant to the notice dated 30.05.2020, we may note that the petitioner has not made any averment with regard to the non-service of the final assessment order.

The dispute, therefore, becomes about the assessment order passed under Section 126 of the Electricity Act' 2003. The remedy before the petitioner is to file an appeal under Section 127 of the Electricity Act' 2003.

At this stage, learned counsel for the petitioner states that the petitioner proposes to file an appeal within a period of three weeks from today.

In case, the petitioner files an appeal within the aforesaid period alongwith the copy of this order, the appellate authority shall pass an appropriate order in accordance with law, within a period of six weeks from the date of filing of the appeal.

The writ petition is, accordingly, **disposed of**.

Order Date :- 29.6.2021

Himanshu